

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1037
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 16-166, Arizona Revised Statutes, is amended to
3 read:

4 16-166. Verification of registration

5 A. Except for the mailing of sample ballots, a county recorder who
6 mails an item to any elector shall send the mailing by nonforwardable
7 first class mail marked with the statement required by the postmaster to
8 receive an address correction notification. If the item is returned
9 undelivered, the county recorder shall send a follow-up notice to that
10 elector within three weeks of receipt of the returned notice. The county
11 recorder shall send the follow-up notice to the address that appears in
12 the general county register or to the forwarding address provided by the
13 United States postal service. The follow-up notice shall include an
14 appropriate internet address for revising voter registration information
15 or a registration form and the information prescribed by section 16-131,
16 subsection C and shall state that if the elector does not complete and
17 return a new registration form with current information to the county
18 recorder or make changes to the elector's voter registration information
19 that is maintained online within thirty-five days, the elector's
20 registration status shall be changed from active to inactive.

21 B. If the elector provides the county recorder with a new
22 registration form or otherwise revises the elector's information, the
23 county recorder shall change the general register to reflect the changes
24 indicated on the new registration. If the elector indicates a new
25 residence address outside that county, the county recorder shall forward
26 the voter registration form or revised information to the county recorder
27 of the county in which the elector's address is located. If the elector
28 provides a new residence address that is located outside this state, the
29 county recorder shall cancel the elector's registration.

30 C. The county recorder shall maintain on the inactive voter list
31 the names of electors who have been removed from the general register
32 pursuant to subsection A or E of this section for a period of four years
33 or through the date of the second general election for federal office
34 following the date of the notice from the county recorder that is sent
35 pursuant to subsection E of this section.

36 D. On notice that a government agency has changed the name of any
37 street, route number, post office box number or other address designation,
38 the county recorder shall revise the registration records and shall send a

1 new verification of registration notice to the electors whose records were
2 changed.

3 E. The county recorder on or before May 1 of each year preceding a
4 state primary and general election or more frequently as the recorder
5 deems necessary may use the change of address information supplied by the
6 postal service through its licensees and the information provided by an
7 electronic voter registration information center to identify registrants
8 whose addresses may have changed. If it appears from information provided
9 by the postal service or an electronic voter registration information
10 center that a registrant has moved to a different residence address, the
11 county recorder shall send the registrant a notice of the change by
12 forwardable mail and a postage prepaid preaddressed return form or an
13 appropriate internet address for revising voter registration information
14 by which the registrant may verify or correct the registration
15 information. If the registrant fails to revise the information or return
16 the form postmarked not later than thirty-five days after the mailing of
17 the notice, the elector's registration status shall be changed from active
18 to inactive. If the notice sent by the recorder is not returned, the
19 registrant may be required to provide affirmation or confirmation of the
20 registrant's address in order to vote. If the registrant does not vote in
21 an election during the period after the date of the notice from the
22 recorder through the date of the second general election for federal
23 office following the date of that notice, the registrant's name shall be
24 removed from the list of inactive voters. If the registrant has changed
25 residence to a new county, the county recorder shall provide information
26 on how the registrant can continue to be eligible to vote.

27 F. The county recorder shall reject any application for
28 registration that is not accompanied by satisfactory evidence of United
29 States citizenship. Satisfactory evidence of citizenship shall include
30 any of the following:

31 1. The number of the applicant's driver license or nonoperating
32 identification license issued after October 1, 1996 by the department of
33 transportation or the equivalent governmental agency of another state
34 within the United States if the agency indicates on the applicant's driver
35 license or nonoperating identification license that the person has
36 provided satisfactory proof of United States citizenship.

37 2. A legible photocopy of the applicant's birth certificate that
38 verifies citizenship to the satisfaction of the county recorder.

39 3. A legible photocopy of pertinent pages of the applicant's United
40 States passport identifying the applicant and the applicant's passport
41 number or presentation to the county recorder of the applicant's United
42 States passport.

43 4. A presentation to the county recorder of the applicant's United
44 States naturalization documents or the number of the certificate of
45 naturalization. If only the number of the certificate of naturalization
46 is provided, the applicant shall not be included in the registration rolls
47 until the number of the certificate of naturalization is verified with the
48 United States immigration and naturalization service by the county
49 recorder.

1 5. Other documents or methods of proof that are established
2 pursuant to the immigration reform and control act of 1986.

3 6. The applicant's bureau of Indian affairs card number, tribal
4 treaty card number or tribal enrollment number.

5 G. Notwithstanding subsection F of this section, any person who is
6 registered in this state on the effective date of this amendment to this
7 section is deemed to have provided satisfactory evidence of citizenship
8 and shall not be required to resubmit evidence of citizenship unless the
9 person is changing voter registration from one county to another.

10 H. For the purposes of this section, proof of voter registration
11 from another state or county is not satisfactory evidence of citizenship.

12 I. A person who modifies voter registration records with a new
13 residence ballot shall not be required to submit evidence of citizenship.
14 After citizenship has been demonstrated to the county recorder, the person
15 is not required to resubmit satisfactory evidence of citizenship in that
16 county.

17 J. After a person has submitted satisfactory evidence of
18 citizenship, the county recorder shall indicate this information in the
19 person's permanent voter file. After two years the county recorder may
20 destroy all documents that were submitted as evidence of citizenship.

21 K. THE SECRETARY OF STATE SHALL JOIN AND MAINTAIN THIS STATE'S
22 PARTICIPATION IN A MULTISTATE ELECTRONIC VOTER REGISTRATION INFORMATION
23 CENTER IN ORDER TO ENSURE ACCURATE AND TIMELY VOTER REGISTRATION
24 INFORMATION. THE COUNTY RECORDER SHALL PARTICIPATE IN LIST MAINTENANCE
25 EFFORTS IN COORDINATION WITH THE SECRETARY OF STATE THAT ARE DERIVED FROM
26 THIS MEMBERSHIP.

27 Sec. 2. Section 16-245, Arizona Revised Statutes, is amended to
28 read:

29 16-245. Form and content of ballot

30 A. Ballots and ballot labels for the presidential preference
31 election shall be printed on different colored paper or white paper with a
32 different colored stripe for each party represented on the presidential
33 preference election ballot. Only one party may be represented on each
34 ballot. At the top shall be printed "official ballot of the
35 _____ party, presidential preference election (date), county of
36 _____, state of Arizona".

37 B. The order of the names of certified candidates on the ballot
38 shall be determined by lots drawn at a public meeting called by the
39 secretary of state for that purpose. Rotation of candidate names is
40 prohibited. The certified candidates shall be listed under the title
41 "_____ party candidates for President of the United
42 States". Immediately below shall be printed "vote for not more than
43 one". The ballot may also contain printed instructions to voters as
44 prescribed for other elections.

1 C. The officer in charge of elections shall provide a sample ballot
2 proof to the state committee chairman of each qualified candidate's state
3 committee ~~no~~ NOT later than five days after ~~receipt of~~ RECEIVING the
4 certification from the secretary of state.

5 D. The officer in charge of elections shall mail one sample ballot
6 of each party represented on the presidential preference election ballot
7 to each household that contains a registered voter of that political party
8 unless that registered voter is on the ~~active~~ PERMANENT early voting list
9 established pursuant to section 16-544. The return address on the sample
10 ballot mailer shall not contain the name of any elected or appointed
11 official, and the name of an appointed or elected official shall not be
12 used to indicate who produced the sample ballot.

13 E. The mailing face of each sample ballot shall be imprinted with
14 the great seal of the state of Arizona with the words "official voting
15 materials – presidential preference election". The ~~polling place~~ VOTING
16 LOCATION for that household may also be designated on the mailing face of
17 the sample ballot.

18 Sec. 3. Section 16-246, Arizona Revised Statutes, is amended to
19 read:

20 16-246. Early balloting; satellite locations; additional
21 procedures

22 A. Within ninety-three days before the presidential preference
23 election and not later than 5:00 p.m. on the eleventh day preceding the
24 election, any elector who is eligible to vote in the presidential
25 preference election may make a verbal or signed, written request for an
26 official early ballot to the county recorder or other officer in charge of
27 elections for the county in which the elector is registered to vote. If
28 the request is verbal, the requesting elector shall provide the date of
29 birth and birthplace or other information that if compared to the voter
30 registration records for that elector would confirm the identity of the
31 elector.

32 B. Absent uniformed services voters or overseas voters who are
33 otherwise eligible to vote in the election may vote as prescribed by
34 sections 16-543 and 16-543.02.

35 C. The county recorder or other officer in charge of elections may
36 establish on-site early voting locations at the office of the county
37 recorder or at other locations in the county deemed necessary or
38 appropriate by the recorder. Early voting shall begin within the time
39 limits prescribed in section 16-542 unless otherwise prescribed by this
40 section.

41 D. The county recorder or other officer in charge of elections
42 shall send by nonforwardable mail that is marked with the statement
43 required by the postmaster to receive an address correction notification
44 any early ballots that are requested pursuant to subsections A and B of
45 this section and shall include a preaddressed envelope for the elector to
46 return the completed ballot.

47 E. The county recorder or other officer in charge of elections
48 shall provide to each election board an appropriate alphabetized list of
49 voters who have requested and have been sent an early ballot. Any person

1 who is on that list of voters and who was sent an early ballot shall not
2 vote at the ~~polling place~~ VOTING LOCATION for that election precinct
3 except as prescribed by section 16-579, subsection B.

4 F. The county recorder or other officer in charge of elections may
5 provide for ~~any of the following~~ SPECIAL ELECTION BOARDS in the same
6 manner prescribed by law for other elections. ~~?~~

7 ~~1. Special election boards.~~

8 ~~2. Emergency balloting for persons who experience an emergency~~
9 ~~after 5:00 p.m. on the Friday preceding the presidential preference~~
10 ~~election and before 5:00 p.m. on the Monday immediately preceding the~~
11 ~~presidential preference election. Before receiving a ballot pursuant to~~
12 ~~this paragraph, a person who experiences an emergency shall provide~~
13 ~~identification as prescribed in section 16-579 and shall sign a statement~~
14 ~~under penalty of perjury that states that the person is experiencing or~~
15 ~~experienced an emergency after 5:00 p.m. on the Friday immediately~~
16 ~~preceding the election and before 5:00 p.m. on the Monday immediately~~
17 ~~preceding the election that would prevent the person from voting at the~~
18 ~~polls. Signed statements received pursuant to this subsection are not~~
19 ~~subject to inspection pursuant to title 39, chapter 1, article 2.~~

20 ~~G. Notwithstanding section 16-579, subsection A, paragraph 2, for~~
21 ~~emergency balloting pursuant to subsection F, paragraph 2 of this section,~~
22 ~~the county recorder or other officer in charge of elections may allow a~~
23 ~~qualified elector to update the elector's voter registration information~~
24 ~~as provided for in the secretary of state's instructions and procedures~~
25 ~~manual adopted pursuant to section 16-452.~~

26 ~~H.~~ G. Sections 16-550, 16-551 and 16-552 govern the use of early
27 balloting for the presidential preference election.

28 Sec. 4. Repeal

29 Section 16-407.01, Arizona Revised Statutes, is repealed.

30 Sec. 5. Title 16, chapter 4, article 1, Arizona Revised Statutes,
31 is amended by adding section 16-407.04, to read:

32 16-407.04. Election administration; private monies

33 NOTWITHSTANDING ANY OTHER LAW, THE SECRETARY OF STATE, COUNTY
34 RECORDERS AND COUNTY ELECTION DIRECTORS MAY RECEIVE AND SPEND PRIVATE
35 MONIES FOR IMPROVEMENTS TO PROCESSES USED IN PREPARING FOR, ADMINISTERING
36 OR CONDUCTING ELECTIONS, INCLUDING REGISTERING VOTERS, CONDUCTING VOTER
37 EDUCATION AND DEVELOPING INNOVATIVE ELECTION PROGRAMS.

38 Sec. 6. Section 16-411, Arizona Revised Statutes, is amended to
39 read:

40 16-411. Designation of election precincts; voting centers;
41 electioneering; wait times

42 A. The board of supervisors of each county, on or before October 1
43 of each year preceding the year of a general election, by an order, shall
44 establish a convenient number of election precincts in the county and
45 define the boundaries of the precincts as follows:

46 1. The election precinct boundaries shall be established so as to
47 be included within election districts prescribed by law for elected
48 officers of the state and its political subdivisions, including community

1 college district precincts, except those elected officers provided for in
2 titles 30 and 48.

3 2. If after October 1 of the year preceding the year of a general
4 election the board of supervisors must further adjust precinct boundaries
5 due to the redistricting of election districts as prescribed by law and to
6 comply with this subsection, the board of supervisors shall adjust these
7 precinct boundaries as soon as is practicable.

8 B. At least twenty days before a general or primary election, and
9 at least ten days before a special election, ~~the board shall designate one~~
10 ~~polling place within each precinct where the election shall be held,~~
11 ~~except that:~~

12 ~~1. On a specific finding of the board, included in the order or~~
13 ~~resolution designating polling places pursuant to this subsection, that no~~
14 ~~suitable polling place is available within a precinct, a polling place for~~
15 ~~that precinct may be designated within an adjacent precinct.~~

16 ~~2. Adjacent precincts may be combined if boundaries so established~~
17 ~~are included in election districts prescribed by law for state elected~~
18 ~~officials and political subdivisions including community college districts~~
19 ~~but not including elected officials prescribed by titles 30 and 48. The~~
20 ~~officer in charge of elections may also split a precinct for~~
21 ~~administrative purposes. The polling places shall be listed in separate~~
22 ~~sections of the order or resolution.~~

23 ~~3. On a specific finding of the board that the number of persons~~
24 ~~who are listed as early voters pursuant to section 16-544 and who are not~~
25 ~~expected to have their ballots tabulated at the polling place as~~
26 ~~prescribed in section 16-579.02 is likely to substantially reduce the~~
27 ~~number of voters appearing at one or more specific polling places at that~~
28 ~~election, adjacent precincts may be consolidated by combining polling~~
29 ~~places and precinct boards for that election. The board of supervisors~~
30 ~~shall ensure that a reasonable and adequate number of polling places will~~
31 ~~be designated for that election. Any consolidated polling places shall be~~
32 ~~listed in separate sections of the order or resolution of the board.~~

33 ~~4.~~ on a specific resolution of the board, the board ~~may authorize~~
34 ~~SHALL PROVIDE FOR~~ the use of voting centers in place of ~~or in addition to~~
35 specifically designated ~~polling places~~ ~~VOTING LOCATIONS~~. A voting center
36 shall allow any voter in that county to receive the appropriate ballot for
37 that voter on election day after presenting identification as prescribed
38 in section 16-579 and to lawfully cast the ballot. Voting centers ~~may~~
39 ~~SHALL~~ be established in coordination and consultation with the county
40 recorder, at other county offices or at other locations in the county
41 deemed appropriate.

42 ~~5. On a specific resolution of the board of supervisors that is~~
43 ~~limited to a specific election date and that is voted on by a recorded~~
44 ~~vote, the board may authorize the county recorder or other officer in~~
45 ~~charge of elections to use emergency voting centers as follows:~~

46 ~~(a) The board shall specify in the resolution the location and the~~
47 ~~hours of operation of the emergency voting centers.~~

48 ~~(b) A qualified elector voting at an emergency voting center shall~~
49 ~~provide identification as prescribed in section 16-579, except that~~

~~1 notwithstanding section 16-579, subsection A, paragraph 2, for any voting
2 at an emergency voting center, the county recorder or other officer in
3 charge of elections may allow a qualified elector to update the elector's
4 voter registration information as provided for in the secretary of state's
5 instructions and procedures manual adopted pursuant to section 16-452.~~

~~6 (c) If an emergency voting center established pursuant to this
7 section becomes unavailable and there is not sufficient time for the board
8 of supervisors to convene to approve an alternate location for that
9 emergency voting center, the county recorder or other officer in charge of
10 elections may make changes to the approved emergency voting center
11 location and shall notify the public and the board of supervisors
12 regarding that change as soon as practicable. The alternate emergency
13 voting center shall be as close in proximity to the approved emergency
14 voting center location as possible.~~

~~15 C. If the board fails to designate the place for holding the
16 election, or if it cannot be held at or about the place designated, the
17 justice of the peace in the precinct, two days before the election, by an
18 order, copies of which the justice of the peace shall immediately post in
19 three public places in the precinct, shall designate the place within the
20 precinct for holding the election. If there is no justice of the peace in
21 the precinct, or if the justice of the peace fails to do so, the election
22 board of the precinct shall designate and give notice of the place within
23 the precinct of holding the election. For any election in which there are
24 no candidates for elected office appearing on the ballot, the board may
25 consolidate polling places and precinct boards and may consolidate the
26 tabulation of results for that election if all of the following apply:~~

~~27 1. All affected voters are notified by mail of the change at least
28 thirty-three days before the election.~~

~~29 2. Notice of the change in polling places includes notice of the
30 new voting location, notice of the hours for voting on election day and
31 notice of the telephone number to call for voter assistance.~~

~~32 3. All affected voters receive information on early voting that
33 includes the application used to request an early voting ballot.~~

~~34 D. C. The board is not required to designate a polling place
35 VOTING CENTER for special district mail ballot elections held pursuant to
36 article 8.1 of this chapter, but the board may designate one or more sites
37 for voters to deposit marked ballots until 7:00 p.m. on the day of the
38 election.~~

~~39 E. D. Except as provided in subsection F E of this section, a
40 public school shall provide sufficient space for use as a polling place
41 VOTING LOCATION for any city, county or state election when requested by
42 the officer in charge of elections.~~

~~43 F. E. The principal of the school may deny a request to provide
44 space for use as a polling place VOTING LOCATION for any city, county or
45 state election if, within two weeks after a request has been made, the
46 principal provides a written statement indicating a reason the election
47 cannot be held in the school, including any of the following:~~

~~48 1. Space is not available at the school.~~

~~49 2. The safety or welfare of the children would be jeopardized.~~

1 ~~F.~~ F. Beginning in 2026, the department of administration shall
2 coordinate with state agencies and counties to provide available and
3 appropriate state-owned facilities for use as a voting location for any
4 city, county or state election when requested by the officer in charge of
5 elections.

6 ~~H.~~ G. The board shall make available to the public as a public
7 record a list of the ~~polling places~~ VOTING LOCATIONS for all precincts in
8 which the election is to be held.

9 ~~I.~~ H. Except in the case of an emergency, any facility that is
10 used as a ~~polling place~~ VOTING LOCATION on election day or that is used as
11 an early voting site during the period of early voting shall allow persons
12 to electioneer and engage in other political activity outside of the
13 seventy-five foot limit prescribed by section 16-515 in public areas and
14 parking lots used by voters. This subsection does not allow the temporary
15 or permanent construction of structures in public areas and parking lots
16 or the blocking or other impairment of access to parking spaces for
17 voters. The county recorder or other officer in charge of elections shall
18 post on its website at least two weeks before election day a list of those
19 ~~polling places~~ VOTING LOCATIONS in which emergency conditions prevent
20 electioneering and shall specify the reason the emergency designation was
21 granted and the number of attempts that were made to find a ~~polling place~~
22 VOTING LOCATION before granting an emergency designation. If the ~~polling~~
23 ~~place~~ VOTING LOCATION is not on the website list of ~~polling places~~ VOTING
24 LOCATIONS with emergency designations, electioneering and other political
25 activity shall be allowed outside of the seventy-five foot limit. If an
26 emergency arises after the county recorder or other officer in charge of
27 elections' initial website posting, the county recorder or other officer
28 in charge of elections shall update the website as soon as is practicable
29 to include any new ~~polling places~~ VOTING LOCATION, shall highlight the
30 ~~polling place~~ VOTING location on the website and shall specify the reason
31 the emergency designation was granted and the number of attempts that were
32 made to find a ~~polling place~~ VOTING LOCATION before granting an emergency
33 designation.

34 ~~J.~~ I. For the purposes of this section, a county recorder or other
35 officer in charge of elections shall designate a ~~polling place~~ VOTING
36 LOCATION as an emergency ~~polling place~~ VOTING LOCATION and thus prohibit
37 persons from electioneering and engaging in other political activity
38 outside of the seventy-five foot limit prescribed by section 16-515 but
39 inside the property of the facility that is hosting the ~~polling place~~
40 VOTING LOCATION if any of the following occurs:

41 1. An act of God renders a previously set ~~polling place~~ VOTING
42 LOCATION as unusable.

43 2. A county recorder or other officer in charge of elections has
44 exhausted all options and there are no suitable facilities in ~~a precinct~~
45 AN AREA that are willing to be a ~~polling place~~ VOTING LOCATION unless a
46 facility can be given an emergency designation.

47 ~~K.~~ J. The secretary of state shall provide through the
48 instructions and procedures manual adopted pursuant to section 16-452 the
49 maximum allowable wait time for any election that is subject to section

1 16-204 and provide for a method to reduce voter wait time at the polls in
2 the primary and general elections. The method shall consider at least all
3 of the following for primary and general elections in each precinct:

4 1. The number of ballots voted in the prior primary and general
5 elections.

6 2. The number of registered voters who voted early in the prior
7 primary and general elections.

8 3. The number of registered voters and the number of registered
9 voters who cast an early ballot for the current primary or general
10 election.

11 4. The number of registered voters whose early ballots were
12 tabulated on-site as prescribed in section 16-579.02 in the prior primary
13 and general elections.

14 5. The number of election board members and clerks and the number
15 of rosters that will reduce voter wait time at the polls.

16 Sec. 7. Section 16-461, Arizona Revised Statutes, is amended to
17 read:

18 16-461. Sample primary election ballots; submission to party
19 chairmen for examination; preparation, printing and
20 distribution of ballot

21 A. At least forty-five days before a primary election, the officer
22 in charge of that election shall:

23 1. Prepare a proof of a sample ballot.

24 2. Submit the sample ballot proof of each party to the county
25 chairman or in city or town primaries to the city or town chairman.

26 3. Mail a sample ballot proof to each candidate for whom a
27 nomination paper and petitions have been filed.

28 B. Within two calendar days after receipt of the sample ballot, the
29 county chairman of each political party and any candidate in that election
30 who has submitted and confirmed an email address shall suggest to the
31 election officer any change the chairman or candidate considers should be
32 made in the chairman's or candidate's party ballot, and if on examination
33 the election officer finds an error or omission on the ballot, the officer
34 shall correct it. The election officer shall print and distribute the
35 sample ballots as required by law, shall maintain a copy of each sample
36 ballot and shall post a notice indicating that sample ballots are
37 available on request. The official sample ballot shall be printed on
38 colored paper or white paper with a different colored stripe for each
39 party that is represented on that ballot. For voters who are not
40 registered with a party that is entitled to continued representation on
41 the ballot pursuant to section 16-804, the election officer may print and
42 distribute the required sample ballots in an alternative format, including
43 a reduced size format.

44 C. Not later than forty days before a primary election, the county
45 chairman of a political party may request one sample primary election
46 ballot of the chairman's party for each election precinct.

47 D. The board of supervisors shall have printed mailer-type sample
48 ballots for a primary election and shall mail at least eleven days before
49 the election one sample ballot of a political party to each household

1 containing a registered voter of that political party unless that
2 registered voter is on the ~~active~~ PERMANENT early voting list established
3 pursuant to section 16-544. Each sample ballot shall contain the
4 following statement: "This is a sample ballot and cannot be used as an
5 official ballot under any circumstances". A certified claim shall be
6 presented to the secretary of state by the board of supervisors for the
7 actual cost of printing, labeling and postage of each sample ballot
8 actually mailed, and the secretary of state shall direct payment of the
9 authenticated claim from funds of the secretary of state's office.

10 E. For city and town elections, the governing body of a city or
11 town may have printed mailer-type sample ballots for a primary election.
12 If the city or town has printed such sample ballots, the city or town
13 shall provide for the distribution of such ballots and shall bear the
14 expense of printing and distributing such sample ballots.

15 F. The return address on the mailer-type sample ballots shall not
16 contain the name of an appointed or elected public officer nor may the
17 name of an appointed or elected public officer be used to indicate who
18 produced the sample ballot.

19 G. The great seal of the state of Arizona shall be imprinted along
20 with the words "official voting materials" on the mailing face of each
21 sample ballot. In county, city or town elections the seal of such
22 jurisdiction shall be substituted for the state seal.

23 Sec. 8. Section 16-510, Arizona Revised Statutes, is amended to
24 read:

25 16-510. Sample ballots: preparation and distribution

26 A. Before printing the sample ballots for the general election the
27 board of supervisors shall send to each candidate whose name did not
28 appear on the preceding primary election ballot and to the county
29 chairperson of each political party a ballot proof of the sample ballot
30 for the candidate's and chairperson's review. Within two calendar days
31 after receipt of the sample ballot, those candidates and the county
32 chairperson of each political party shall suggest to the election officer
33 any change the candidate or chairperson considers should be made to the
34 ballot, and if on examination the election officer finds an error or
35 omission on the ballot, the officer shall correct the error or omission.

36 B. The board of supervisors shall print and distribute, for the
37 information of voters at each ~~polling place~~ VOTING LOCATION, a number of
38 sample ballots as it deems necessary.

39 C. The board of supervisors shall have printed mailer-type sample
40 ballots for a general election and shall mail at least eleven days before
41 the election one such sample ballot to each household in the county
42 containing a registered voter unless that registered voter is on the
43 ~~active~~ PERMANENT early voting list established pursuant to section 16-544.
44 Each sample ballot shall contain the following statement: "This is a
45 sample ballot and cannot be used as an official ballot under any
46 circumstances". A certified claim shall be presented to the secretary of
47 state by the board of supervisors for the actual cost of printing,
48 labeling and postage of each sample ballot actually mailed, and the

1 secretary of state shall direct payment of the authenticated claim from
2 funds of the secretary of state's office.

3 D. For city and town elections, the governing body of a city or
4 town may have printed mailer-type sample ballots for a general
5 election. If the city or town has printed such sample ballots, the city
6 or town shall provide for the distribution of such ballots and shall bear
7 the expense of printing and distributing such sample ballots.

8 E. For special district elections, the governing body of a special
9 district may have printed mailer-type sample ballots. If the special
10 district has printed such sample ballots, the special district shall
11 provide for the distribution of such ballots and shall bear the expense of
12 printing and distributing such sample ballots.

13 Sec. 9. Section 16-515, Arizona Revised Statutes, is amended to
14 read:

15 16-515. "Seventy-five foot limit" notices; posting;
16 violation; classification

17 A. Except as prescribed in this section and section 16-580, a
18 person shall not be allowed to remain inside the seventy-five foot limit
19 FOR EACH VOTING LOCATION while the polls are open AND FOR EACH DESIGNATED
20 BALLOT RECEPTACLE WHILE ACCESSIBLE TO THE PUBLIC, except for the purpose
21 of voting, and except the election officials, one representative at any
22 one time of each political party represented on the ballot who has been
23 appointed by the county chairman of that political party and the
24 challengers allowed by law, and no electioneering may NOT occur within the
25 seventy-five foot limit. Voters having cast their ballots shall promptly
26 move outside the seventy-five foot limit.

27 B. The board of supervisors shall furnish FOR EACH DESIGNATED
28 BALLOT RECEPTACLE, AND with the ballots for each ~~polling place~~ VOTING
29 LOCATION, three notices, printed in letters not less than two inches high,
30 with the heading: "Seventy-five foot limit" and underneath that heading
31 the following:

32 No person shall be allowed to remain inside these limits while
33 the polls are open, except for the purpose of voting, and
34 except the election officials, one representative at any one
35 time of each political party represented on the ballot who has
36 been appointed by the county chairman of such political party,
37 and the challengers allowed by law. Voters having cast their
38 ballots shall at once retire without the seventy-five foot
39 limit. A person violating any provision of this notice is
40 guilty of a class 2 misdemeanor.

41 C. A minor voting in a simulated election at a ~~polling place~~ VOTING
42 LOCATION is subject to the same seventy-five foot limit restrictions
43 prescribed for a voter. Persons supervising or working in a simulated
44 election in which minors vote may remain within the seventy-five foot
45 limit of the ~~polling place~~ VOTING LOCATION. The inspector for the ~~polling~~
46 ~~place~~ VOTING LOCATION shall exercise authority over all election and
47 simulated election related activities at the ~~polling place~~ VOTING
48 LOCATION.

1 D. For an election that is held by an Indian tribe and that is held
2 at a ~~polling place~~ VOTING LOCATION at the same time and on the same date
3 as any other election, the following apply:

4 1. A person who is voting is subject to the same seventy-five foot
5 limit restrictions prescribed for other voters.

6 2. An election official for the tribal election may remain within
7 the seventy-five foot limit for the ~~polling place~~ VOTING LOCATION.

8 E. With the permission of the voter, a minor may enter and remain
9 within the seventy-five foot limit in order to accompany a voter into a
10 ~~polling place~~ VOTING LOCATION, an on-site early voting facility and a
11 voting booth while the voter is voting.

12 F. Notwithstanding any other law, an election official, a
13 representative of a political party who has been appointed by the county
14 chairman of that political party or a challenger who is authorized by law
15 to be within the seventy-five foot limit as prescribed by this section
16 shall not wear, carry or display materials that identify or express
17 support for or opposition to a candidate, a political party or
18 organization, a ballot question or any other political issue and shall not
19 electioneer within the seventy-five foot limit of a ~~polling place~~ VOTING
20 LOCATION OR DESIGNATED BALLOT RECEPTACLE.

21 G. Notwithstanding section 16-1018, a person may not take
22 photographs or videos while within the seventy-five foot limit.

23 H. ~~Any~~ A person ~~violating~~ WHO VIOLATES this section is guilty of a
24 class 2 misdemeanor.

25 I. For the purposes of this section, electioneering occurs when an
26 individual knowingly, intentionally, by verbal expression and in order to
27 induce or compel another person to vote in a particular manner or to
28 refrain from voting expresses support for or opposition to a candidate who
29 appears on the ballot in that election, a ballot question that appears on
30 the ballot in that election or a political party with one or more
31 candidates who appear on the ballot in that election.

32 Sec. 10. Section 16-542, Arizona Revised Statutes, is amended to
33 read:

34 16-542. Request for ballot; civil penalties; violation;
35 classification

36 A. Within ninety-three days before any election called pursuant to
37 the laws of this state, an elector may make a verbal or signed request to
38 the county recorder, or other officer in charge of elections for the
39 applicable political subdivision of this state in whose jurisdiction the
40 elector is registered to vote, for an official early ballot. In addition
41 to name and address, the requesting elector shall provide the date of
42 birth and state or country of birth or other information that if compared
43 to the voter registration information on file would confirm the identity
44 of the elector. If the request indicates that the elector needs a primary
45 election ballot and a general election ballot, the county recorder or
46 other officer in charge of elections shall honor the request. For any
47 partisan primary election, if the elector is not registered as a member of
48 a political party that is entitled to continued representation on the
49 ballot pursuant to section 16-804, the elector shall designate the ballot

1 of only one of the political parties that is entitled to continued
2 representation on the ballot and the elector may receive and vote the
3 ballot of only that one political party, which also shall include any
4 nonpartisan offices and ballot questions, or the elector shall designate
5 the ballot for nonpartisan offices and ballot questions only and the
6 elector may receive and vote the ballot that contains only nonpartisan
7 offices and ballot questions. The county recorder or other officer in
8 charge of elections shall process any request for an early ballot for a
9 municipal election pursuant to this subsection. The county recorder ~~may~~
10 **SHALL** establish on-site early voting locations at the **COUNTY** recorder's
11 office, which shall be open and available for use beginning the same day
12 that a county begins to send out the early ballots. The county recorder
13 may also establish any other early voting locations in the county the
14 **COUNTY** recorder deems necessary. **THE EARLY VOTING LOCATIONS, INCLUDING**
15 **THE LOCATIONS AT THE COUNTY RECORDER'S OFFICES, SHALL BE OPEN ON THE**
16 **SATURDAY, SUNDAY AND MONDAY BEFORE ELECTION DAY FROM AT LEAST 8:00 A.M.**
17 **UNTIL AT LEAST 5:00 P.M.** Any on-site early voting location or other early
18 voting location shall require each elector to present identification as
19 prescribed in section 16-579 before receiving a ballot. Notwithstanding
20 section 16-579, subsection A, paragraph 2, at any on-site early voting
21 location or other early voting location the county recorder or other
22 officer in charge of elections may provide for a qualified elector to
23 update the elector's voter registration information as provided for in the
24 secretary of state's instructions and procedures manual adopted pursuant
25 to section 16-452.

26 B. Notwithstanding subsection A of this section, a request for an
27 official early ballot from an absent uniformed services voter or overseas
28 voter as defined in the uniformed and overseas citizens absentee voting
29 act (P.L. 99-410; 52 United States Code section 20310) or a voter whose
30 information is protected pursuant to section 16-153 that is received by
31 the county recorder or other officer in charge of elections more than
32 ninety-three days before the election is valid. If requested by the
33 absent uniformed services or overseas voter, or a voter whose information
34 is protected pursuant to section 16-153, the county recorder or other
35 officer in charge of elections shall provide to the requesting voter early
36 ballot materials through the next regularly scheduled general election for
37 federal office immediately following receipt of the request unless a
38 different period of time, which does not exceed the next two regularly
39 scheduled general elections for federal office, is designated by the
40 voter.

41 C. The county recorder or other officer in charge of elections
42 shall mail the early ballot and the envelope for its return postage
43 prepaid to the address provided by the requesting elector within five days
44 after receipt of the official early ballots from the officer charged by
45 law with the duty of preparing ballots pursuant to section 16-545, except
46 that early ballot distribution shall not begin more than twenty-seven days
47 before the election. If an early ballot request is received on or before
48 the thirty-first day before the election, the early ballot shall be

1 distributed not earlier than the twenty-seventh day before the election
2 and not later than the twenty-fourth day before the election.

3 D. Only the elector may be in possession of that elector's unvoted
4 early ballot. If a complete and correct request is made by the elector
5 within twenty-seven days before the election, the mailing must be made
6 within forty-eight hours after receipt of the request. Saturdays, Sundays
7 and other legal holidays are excluded from the computation of the
8 forty-eight-hour period prescribed by this subsection. If a complete and
9 correct request is made by an absent uniformed services voter or an
10 overseas voter before the election, the regular early ballot shall be
11 transmitted by mail, by fax or by other electronic format approved by the
12 secretary of state within twenty-four hours after the early ballots are
13 delivered pursuant to section 16-545, subsection B, excluding Sundays.

14 E. In order to be complete and correct and to receive an early
15 ballot by mail, an elector's request that an early ballot be mailed to the
16 elector's residence or temporary address must include all of the
17 information prescribed by subsection A of this section and must be
18 received by the county recorder or other officer in charge of elections
19 not later than 5:00 p.m. on the eleventh day preceding the election. An
20 elector who appears personally not later than 7:00 p.m. on the Friday
21 preceding the election at an on-site early voting location that is
22 established by the county recorder or other officer in charge of elections
23 shall be given a ballot after presenting identification as prescribed in
24 section 16-579 and shall be allowed to vote at the on-site location.
25 Notwithstanding section 16-579, subsection A, paragraph 2, at any on-site
26 early voting location the county recorder or other officer in charge of
27 elections may provide for a qualified elector to update the elector's
28 voter registration information as provided for in the secretary of state's
29 instructions and procedures manual adopted pursuant to section 16-452. If
30 an elector's request to receive an early ballot is not complete and
31 correct but complies with all other requirements of this section, the
32 county recorder or other officer in charge of elections shall attempt to
33 notify the elector of the deficiency of the request.

34 F. Unless an elector specifies that the address to which an early
35 ballot is to be sent is a temporary address, the recorder may use the
36 information from an early ballot request form to update voter registration
37 records.

38 G. The county recorder or other officer in charge of early
39 balloting shall provide an alphabetized list of all voters in the precinct
40 who have requested and have been sent an early ballot to the election
41 board of the precinct in which the voter is registered not later than the
42 day before the election.

43 ~~H. As a result of experiencing an emergency between 7:00 p.m. on~~
44 ~~the Friday preceding the election and 5:00 p.m. on the Monday preceding~~
45 ~~the election, qualified electors may request to vote in the manner~~
46 ~~prescribed by the board of supervisors of their respective county. Before~~
47 ~~voting pursuant to this subsection, an elector who experiences an~~
48 ~~emergency shall provide identification as prescribed in section 16-579 and~~
49 ~~shall sign a statement under penalty of perjury that states that the~~

~~1 person is experiencing or experienced an emergency after 7:00 p.m. on the
2 Friday immediately preceding the election and before 5:00 p.m. on the
3 Monday immediately preceding the election that would prevent the person
4 from voting at the polls. Signed statements received pursuant to this
5 subsection are not subject to inspection pursuant to title 39, chapter 1,
6 article 2. For the purposes of this subsection, "emergency" means any
7 unforeseen circumstances that would prevent the elector from voting at the
8 polls.~~

~~9 I. Notwithstanding section 16-579, subsection A, paragraph 2, for
10 any voting pursuant to subsection H of this section, the county recorder
11 or other officer in charge of elections may allow a qualified elector to
12 update the elector's voter registration information as provided for in the
13 secretary of state's instructions and procedures manual adopted pursuant
14 to section 16-452.~~

~~15~~ ~~H.~~ H. A candidate, political committee or other organization may
16 distribute early ballot request forms to voters. If the early ballot
17 request forms include a printed address for return, the addressee shall be
18 the political subdivision that will conduct the election. Failure to use
19 the political subdivision as the return addressee is punishable by a civil
20 penalty of up to three times the cost of the production and distribution
21 of the request.

~~22~~ ~~K.~~ I. All original and completed early ballot request forms that
23 are received by a candidate, political committee or other organization
24 shall be submitted within six business days after receipt by a candidate,
25 political committee or other organization or eleven days before the
26 election day, whichever is earlier, to the political subdivision that will
27 conduct the election. Any person, political committee or other
28 organization that fails to submit a completed early ballot request form
29 within the prescribed time is subject to a civil penalty of up to \$25 per
30 day for each completed form withheld from submittal. Any person who
31 knowingly fails to submit a completed early ballot request form before the
32 submission deadline for the election immediately following the completion
33 of the form is guilty of a class 6 felony.

~~34~~ ~~L.~~ J. Except for a voter who is on the ~~active~~ **PERMANENT** early
35 voting list prescribed by section 16-544, a voter who requests a onetime
36 early ballot pursuant to this section or for an election conducted
37 pursuant to section 16-409 or article 8.1 of this chapter, a county
38 recorder, city or town clerk or other election officer may not deliver or
39 mail an early ballot to a person who has not requested an early ballot for
40 that election. An election officer who knowingly violates this subsection
41 is guilty of a class 5 felony.

42 Sec. 11. Section 16-544, Arizona Revised Statutes, is amended to
43 read:

44 16-544. Permanent early voting list; civil penalty;
45 violation; classification; definition

46 A. Any voter may request to be included on a list of voters to
47 receive an early ballot by mail for any election for which the county
48 voter registration roll is used to prepare the election register. The

1 county recorder of each county shall maintain the ~~active~~ PERMANENT early
2 voting list as part of the voter registration roll.

3 B. In order to be included on the ~~active~~ PERMANENT early voting
4 list, the voter shall make a written request specifically requesting that
5 the voter's name be added to the ~~active~~ PERMANENT early voting list for
6 all elections in which the applicant is eligible to vote. ~~An~~ A PERMANENT
7 early voter request form shall conform to requirements prescribed in the
8 instructions and procedures manual issued pursuant to section 16-452. The
9 application shall allow for the voter to provide the voter's name,
10 residence address, mailing address in the voter's county of residence,
11 date of birth and signature and shall state that the voter is attesting
12 that the voter is a registered voter who is eligible to vote in the county
13 of residence. The voter shall not list a mailing address that is outside
14 of this state for the purpose of the ~~active~~ PERMANENT early voting list
15 unless the voter is an absent uniformed services voter or overseas voter
16 as defined in the uniformed and overseas citizens absentee voting act
17 (P.L. 99-410; 52 United States Code section 20310). In lieu of the
18 application, the applicant may submit a written request that contains the
19 required information.

20 C. On receipt of a request to be included on the ~~active~~ PERMANENT
21 early voting list, the county recorder or other officer in charge of
22 elections shall compare the signature on the request form with the voter's
23 signature on the voter's registration form and, if the request is from the
24 voter, shall mark the voter's registration file as ~~an active~~ A PERMANENT
25 early ballot request.

26 D. Not less than ninety days before any ~~polling place~~ VOTING
27 LOCATION election scheduled in March or August, the county recorder or
28 other officer in charge of elections shall mail to all voters who are
29 eligible for the election, who are not listed as inactive and who are
30 included on the ~~active~~ PERMANENT early voting list an election notice by
31 nonforwardable mail that is marked with the statement required by the
32 postmaster to receive an address correction notification. If an election
33 is not formally called by a jurisdiction by the one hundred eightieth day
34 before the election, the recorder or other officer in charge of elections
35 is not required to send the election notice. The notice shall include the
36 dates of the elections that are the subject of the notice, the dates that
37 the voter's ballot is expected to be mailed and the address where the
38 ballot will be mailed. If the upcoming election is a partisan open
39 primary election and the voter is not registered as a member of one of the
40 political parties that is recognized for purposes of that primary, the
41 notice shall include information on the procedure for the voter to
42 designate a political party ballot. The notice shall be delivered with
43 return postage prepaid and shall also include a means for the voter to do
44 any of the following:

45 1. Change the mailing address for the voter's ballot to another
46 location in the voter's county of residence.

47 2. Update the voter's residence address in the voter's county of
48 residence.

1 3. Request that the voter not be sent a ballot for the upcoming
2 election or elections indicated on the notice.

3 E. If the notice that is mailed to the voter is returned
4 undeliverable by the postal service, the county recorder or other officer
5 in charge of elections shall take the necessary steps to contact the voter
6 at the voter's new residence address in order to update that voter's
7 address or to move the voter to inactive status as prescribed in section
8 16-166, subsection A. If a voter is moved to inactive status, the voter
9 shall be removed from the ~~active~~ PERMANENT early voting list and may not
10 receive an early ballot unless the voter updates or otherwise confirms the
11 voter's registration information. If the voter is removed from the ~~active~~
12 PERMANENT early voting list, the voter shall only be added to the ~~active~~
13 PERMANENT early voting list again if the voter submits a new request
14 pursuant to this section.

15 F. Not later than the first day of early voting, the county
16 recorder or other officer in charge of elections shall mail an early
17 ballot to all eligible voters who are not listed as inactive and who are
18 included on the ~~active~~ PERMANENT early voting list in the same manner
19 prescribed in section 16-542, subsection C. If the voter has not returned
20 the notice or otherwise notified the election officer within forty-five
21 days before the election that the voter does not wish to receive an early
22 ballot by mail for the election or elections indicated, the ballot shall
23 automatically be scheduled for mailing.

24 G. If a voter who is on the ~~active~~ PERMANENT early voting list is
25 not registered as a member of a recognized political party and fails to
26 notify the county recorder of the voter's choice for political party
27 ballot within forty-five days before a partisan open primary election, the
28 following apply:

29 1. The voter shall not automatically be sent a ballot for that
30 partisan open primary election only and the voter's name shall remain on
31 the ~~active~~ PERMANENT early voting list for future elections.

32 2. To receive an early ballot for the primary election, the voter
33 shall submit the voter's choice for political party ballot to the county
34 recorder.

35 H. After a voter has requested to be included on the ~~active~~
36 PERMANENT early voting list, the voter shall be sent an early ballot by
37 mail automatically for any election at which a voter at that residence
38 address is eligible to vote until any of the following occurs:

39 1. The voter requests in writing to be removed from the ~~active~~
40 PERMANENT early voting list.

41 2. The voter's registration or eligibility for registration is
42 moved to inactive status or canceled as otherwise provided by law.

43 3. The notice sent by the county recorder or other officer in
44 charge of elections is returned undeliverable and the county recorder or
45 officer in charge of elections is unable to contact the voter to determine
46 the voter's continued desire to remain on the list.

47 ~~4. The voter fails to vote an early ballot in all elections for two~~
48 ~~consecutive election cycles. For the purposes of this paragraph,~~
49 ~~"election" means any regular primary or regular general election for which~~

~~1 there was a federal race on the ballot or for which a city or town
2 candidate primary or first election or city or town candidate second,
3 general or runoff election was on the ballot. This paragraph does not
4 apply to:~~

~~5 (a) A special taxing district that is authorized pursuant to
6 section 16-191 to conduct its own elections.~~

~~7 (b) A special district mail ballot election that is conducted
8 pursuant to article 8.1 of this chapter.~~

9 I. A voter may make a written request at any time to be removed
10 from the ~~active~~ PERMANENT early voting list. The request shall include
11 the voter's name, residence address, date of birth and signature. On
12 receipt of a completed request to remove a voter from the ~~active~~ PERMANENT
13 early voting list, the county recorder or other officer in charge of
14 elections shall remove the voter's name from the list as soon as
15 practicable.

16 J. An absent uniformed services voter or overseas voter as defined
17 in the uniformed and overseas citizens absentee voting act (P.L. 99-410;
18 52 United States Code section 20310) is eligible to be placed on the
19 ~~active~~ PERMANENT early voting list pursuant to this section.

20 K. A voter's failure to vote an early ballot once received does not
21 constitute grounds to remove the voter from the ~~active~~ PERMANENT early
22 voting list, ~~except that a county recorder shall remove a voter from the
23 active early voting list if both of the following apply:~~

~~24 1. The county recorder or other officer in charge of elections
25 complies with subsection M of this section.~~

~~26 2. The voter fails to vote using an early ballot in all of the
27 following elections for two consecutive election cycles:~~

~~28 (a) A regular primary and regular general election for which there
29 was a federal race on the ballot.~~

~~30 (b) A city or town candidate primary or first election and a city
31 or town candidate second, general or runoff election.~~

~~32 L. On or before January 15 of each odd-numbered year, the county
33 recorder or other officer in charge of elections shall send a notice to
34 each voter who is on the active early voting list and who did not vote an
35 early ballot in all elections for two consecutive election cycles as
36 prescribed by subsection K of this section. If the voter has provided the
37 voter's telephone or mobile phone number or email address to the county
38 recorder, the county recorder may additionally provide the notice to the
39 voter by telephone call, text message or email. The notice shall inform
40 the voter that if the voter wishes to remain on the active early voting
41 list, the voter shall do both of the following with the notice received:~~

~~42 1. Confirm in writing the voter's desire to remain on the active
43 early voting list.~~

~~44 2. Return the completed notice to the county recorder or other
45 officer in charge of elections within ninety days after the notice is sent
46 to the voter. The notice shall be signed by the voter and shall contain
47 the voter's address and date of birth.~~

~~48 M. If a voter receives a notice as prescribed by subsection L of
49 this section and the voter fails to respond within the ninety-day period,~~

~~1 the county recorder or other officer in charge of elections shall remove~~
~~2 the voter's name from the active early voting list.~~

3 ~~N.~~ L. A candidate, political committee or other organization may
4 distribute ~~active~~ PERMANENT early voting list request forms to voters. If
5 the ~~active~~ PERMANENT early voting list request forms include a printed
6 address for return, that address shall be the political subdivision that
7 will conduct the election. Failure to use the political subdivision as
8 the return addressee is punishable by a civil penalty of up to three times
9 the cost of the production and distribution of the ~~active~~ PERMANENT early
10 voting list request.

11 ~~O.~~ M. All original and completed ~~active~~ PERMANENT early voting
12 list request forms that are received by a candidate, political committee
13 or other organization shall be submitted within six business days after
14 receipt by a candidate or political committee or eleven days before the
15 election day, whichever is earlier, to the political subdivision that will
16 conduct the election. Any person, political committee or other
17 organization that fails to submit a completed ~~active~~ PERMANENT early
18 voting list request form within the prescribed time is subject to a civil
19 penalty of up to \$25 per day for each completed form withheld from
20 submittal. Any person who knowingly fails to submit a completed ~~active~~
21 PERMANENT early voting list request form before the submission deadline
22 for the election immediately following the completion of the form is
23 guilty of a class 6 felony.

24 ~~P.~~ N. A person who receives an early ballot at an address at which
25 another person formerly resided, without voting the ballot or signing the
26 envelope, shall write "not at this address" on the envelope and place the
27 mail piece in a United States postal service collection box or other mail
28 receptacle. On receipt the county recorder or other officer in charge of
29 elections shall proceed in the manner prescribed in subsection E of this
30 section.

31 ~~Q.~~ O. When the county recorder receives confirmation from another
32 county that a person registered has registered to vote in that other
33 county, the county recorder shall remove that person from the ~~active~~
34 PERMANENT early voting list.

35 ~~R.~~ P. If the county recorder receives credible information that a
36 person has registered to vote in a different county, the county recorder
37 shall confirm the person's voter registration with that other county and,
38 on confirmation, shall remove that person from the county's ~~active~~
39 PERMANENT early voting list pursuant to subsection ~~Q~~ O of this section.

40 ~~S.~~ For the purposes of this section, "election cycle" means the
41 two-year period beginning on January 1 in the year after a statewide
42 general election or, for cities and towns, the two-year period beginning
43 on the first day of the calendar quarter after the calendar quarter in
44 which the city's or town's second, runoff or general election is scheduled
45 and ending on the last day of the calendar quarter in which the city's or
46 town's immediately following second, runoff or general election is
47 scheduled, however that election is designated by the city or town.

48 Sec. 12. Section 16-550, Arizona Revised Statutes, is amended to
49 read:

1 16-550. Receipt of voter's ballot; cure period; notice to
2 cure system; tracking system

3 A. Except for early ballots tabulated as prescribed in section
4 16-579.02 or, beginning in 2026, received at a voting location after a
5 voter's identification is confirmed as prescribed by section 16-579,
6 subsection A, paragraph 4, on receipt of the envelope containing the early
7 ballot and the mail affidavit, the county recorder or other officer in
8 charge of elections shall compare the signature on the envelope with the
9 signature of the elector on the elector's registration record as
10 prescribed by section 16-550.01. If the signature is inconsistent with
11 the elector's signature on the elector's registration record, the county
12 recorder or other officer in charge of elections shall make reasonable
13 efforts to contact the voter, advise the voter of the inconsistent
14 signature and allow the voter to correct or the county to confirm the
15 inconsistent signature. The county recorder or other officer in charge of
16 elections shall allow signatures to be corrected not later than the fifth
17 business day after a primary, general or special election that includes a
18 federal office or the third business day after any other election. If the
19 election is a primary, general or special election that includes a federal
20 office and there are outstanding ballots that require identification or
21 ballot signatures to be corrected or confirmed, in addition to the
22 office's regular business hours, the county recorder's and any city or
23 town clerks' offices that have an agreement with a county to be used as
24 locations at which a voter may submit proof of identification shall be
25 open during regular business hours to allow for curing signatures during
26 the Friday and weekend before and the Friday and weekend after the
27 election. Regular business hours include at a minimum 8:00 a.m. until
28 5:00 p.m. If there are no ballots remaining that require identification
29 or signatures to be cured, the county recorder and city and town clerks
30 are not required to be open during the weekend. If the signature is
31 missing, the county recorder or other officer in charge of elections shall
32 make reasonable efforts to contact the elector, advise the elector of the
33 missing signature and allow the elector to add the elector's signature not
34 later than 7:00 p.m. on election day. If satisfied that the signatures
35 correspond, the recorder or other officer in charge of elections shall
36 hold the envelope containing the early ballot and the completed mail
37 affidavit unopened in accordance with the rules of the secretary of state.
38 Signatures that cannot be verified pursuant to section 16-550.01 or cured
39 pursuant to this section shall be rejected. If the ballot is a
40 conditional provisional ballot, **THE COUNTY RECORDER OR OTHER OFFICER IN**
41 **CHARGE OF ELECTIONS SHALL MAKE REASONABLE EFFORTS TO CONTACT THE VOTER AND**
42 **ADVISE THE VOTER THAT** the voter ~~shall~~ **MUST** provide proof of identification
43 to the county recorder or other officer in charge of elections not later
44 than the fifth business day after a primary, general or special election
45 that includes a federal office or the third business day after any other
46 election. Beginning with the first missing or mismatched signature that
47 is identified after the period of early voting begins through the Monday
48 immediately preceding the election, the county recorder or other officer
49 in charge of elections shall submit daily to the political parties that

1 are qualified for continued representation on the state ballot an updated
2 list of all voters whose signatures are missing or inconsistent with the
3 voter's signature on the voter's registration record. Beginning on the
4 Wednesday immediately following the election through the end of the
5 signature cure period after a primary, general or special election that
6 includes a federal office, or the third business day after the election
7 for any other election, the county recorder or other officer in charge of
8 elections shall submit daily to the political parties that are qualified
9 for continued representation on the state ballot an updated list of all
10 voters whose signatures are inconsistent with the voter's signature on the
11 voter's registration record and all voters who voted with a conditional
12 provisional ballot. This list of voters whose signatures require curing
13 shall include for those voters all voter information that is provided to
14 the political parties that are qualified for continued representation on
15 the state ballot as prescribed by section 16-168.

16 B. A COUNTY RECORDER OR OTHER OFFICER IN CHARGE OF ELECTIONS WHO IS
17 REQUIRED BY SUBSECTION A OF THIS SECTION TO MAKE EFFORTS TO NOTIFY A VOTER
18 THAT THE VOTER'S SIGNATURE APPEARS INCONSISTENT OR IS MISSING OR THAT THE
19 VOTER OF A CONDITIONAL PROVISIONAL BALLOT IS REQUIRED TO PROVIDE PROOF OF
20 IDENTIFICATION SHALL ESTABLISH A NOTICE TO CURE SYSTEM THAT INDICATES BY
21 TEXT MESSAGE TO A VOTER WHETHER THE VOTER'S SIGNATURE NEEDS TO BE ADDED,
22 CONFIRMED OR CURED AND WHETHER THE VOTER IS REQUIRED TO PROVIDE
23 IDENTIFICATION OR OTHER INFORMATION IN ORDER TO VALIDATE THE VOTER'S
24 BALLOT AND WHETHER THE BALLOT HAS BEEN VERIFIED AND SENT TO BE TABULATED
25 OR REJECTED. THE COUNTY RECORDER OR OTHER OFFICER IN CHARGE OF ELECTIONS
26 SHALL PROVIDE VOTERS WITH ACCESS TO THE NOTICE TO CURE SYSTEM ON THE
27 COUNTY'S WEBSITE AND SHALL REQUIRE THE VOTER'S CONSENT TO RECEIVE TEXT
28 MESSAGES.

29 ~~B.~~ C. The recorder or other officer in charge of elections shall
30 thereafter safely keep the mail affidavits and early ballots in the
31 recorder's or other officer's office and may deliver them for tallying
32 pursuant to section 16-551.

33 ~~C.~~ D. Processing and tabulation of individual ballots may begin
34 immediately after the envelope and completed mail affidavit are processed
35 pursuant to this section and delivered to the early election board and
36 shall continue without delay until completed. Until election day, the
37 early election board and the county recorder or other officer in charge of
38 elections shall:

39 1. Not access an aggregated complete results file of early voting
40 and vote by mail ballots that were processed and tabulated by the end of
41 the early voting period.

42 2. Not produce for internal or external use an aggregated results
43 report or associated files of complete results.

44 3. Only produce a partial results report or associated files if it
45 is part of the internal preparation for the hand count pursuant to section
46 16-602 or for the logic and accuracy testing required pursuant to section
47 16-449.

1 4. Not publicly release complete or partial results, whether for
2 internal or external use, until all precincts have reported or one hour
3 after the closing of the polls on election day, whichever is earlier.

4 ~~D.~~ E. The county recorder or other officer in charge of elections
5 shall post on its website within forty-eight hours after all ballot
6 tabulation is complete all system log files and other similar files from
7 the election management system that verify compliance with subsection ~~E~~ D
8 of this section.

9 ~~F.~~ F. The county recorder shall send a list of all voters who were
10 issued early ballots to the election board of the precinct in which the
11 voter is registered.

12 ~~F.~~ G. For a county that uses early ballots, the county recorder or
13 other officer in charge of elections shall provide an early ballot
14 tracking system that indicates BY TEXT MESSAGE TO AN EARLY VOTER whether
15 the voter's early ballot has been received and whether the early ballot
16 has been verified and sent to be tabulated or rejected. The county
17 recorder or other officer in charge of elections shall provide voters with
18 access to the early ballot tracking system on the county's website AND
19 SHALL REQUIRE THE EARLY VOTER'S CONSENT TO RECEIVE TEXT MESSAGES.

20 H. IF A COUNTY RECORDER OR OTHER OFFICER IN CHARGE OF ELECTIONS
21 RECEIVES A VOTED EARLY BALLOT THAT APPEARS TO BE AN OTHERWISE LAWFUL
22 BALLOT THAT HAS BEEN ISSUED BY A COUNTY OR JURISDICTION OTHER THAN THE
23 COUNTY THAT RECEIVED THE BALLOT, THE FOLLOWING APPLY:

24 1. IF THE COUNTY RECORDER OR OTHER OFFICER IN CHARGE OF ELECTIONS
25 THAT INITIALLY RECEIVED THE EARLY BALLOT RECEIVED IT ON OR BEFORE 7:00
26 P.M. ON ELECTION DAY, THAT COUNTY RECORDER OR OTHER OFFICER IN CHARGE OF
27 ELECTIONS SHALL PROVIDE THE BALLOT AND THE MAIL AFFIDAVIT BY PERSONAL
28 DELIVERY, EXPEDITED MAIL OR OTHER PACKAGE TRANSFER METHOD TO THE COUNTY
29 RECORDER OR OTHER OFFICER IN CHARGE OF ELECTIONS FROM THE COUNTY THAT
30 ISSUED THE BALLOT.

31 2. THE COUNTY RECORDER OR OTHER OFFICER IN CHARGE OF ELECTIONS THAT
32 INITIALLY RECEIVED THE EARLY BALLOT SHALL MAKE THE DELIVERY OR TRANSFER
33 PRESCRIBED BY PARAGRAPH 1 OF THIS SUBSECTION SO THAT THE SECOND COUNTY
34 RECORDER OR OTHER OFFICER IN CHARGE OF ELECTIONS RECEIVES THE EARLY BALLOT
35 AND MAIL AFFIDAVIT WITHIN THREE DAYS AFTER ELECTION DAY.

36 3. ON RECEIPT AS PRESCRIBED BY PARAGRAPH 2 OF THIS SUBSECTION, THE
37 COUNTY OR OTHER JURISDICTION THAT ISSUED AND RECEIVED THE BALLOT AND MAIL
38 AFFIDAVIT SHALL PROCESS THE EARLY BALLOT AS PRESCRIBED BY SUBSECTIONS A
39 THROUGH F OF THIS SECTION AND SECTION 16-550.01, AND THAT BALLOT IS
40 ELIGIBLE TO BE CONSIDERED FOR TABULATION.

41 ~~G.~~ I. This section does not apply to:

42 1. A special taxing district that is authorized pursuant to section
43 16-191 to conduct its own elections.

44 2. A special district mail ballot election that is conducted
45 pursuant to article 8.1 of this chapter.

1 Sec. 13. Section 16-572, Arizona Revised Statutes, is amended to
2 read:

3 16-572. Delivery and custody of ballots at voting center

4 A. On opening the polls, the inspector shall produce the sealed
5 package of official ballots and publicly open it and deliver one book or
6 block of ballots therein contained to the judges. The other blocks or
7 books of ballots, if any, shall be retained by the inspector until called
8 for by the judges and required for voting.

9 B. One of the judges of election shall keep the ballots within the
10 ~~polling place~~ VOTING CENTER in plain view of the public and deliver them
11 only to qualified voters.

12 C. A person shall not take or remove a ballot from ~~the polling~~
13 ~~place~~ A VOTING LOCATION OR A DESIGNATED BALLOT RECEPTACLE before the polls
14 are closed, EXCEPT THAT EARLY BALLOTS THAT ARE RETURNED AT VOTING
15 LOCATIONS OR AT A DESIGNATED BALLOT RECEPTACLE MAY BE REMOVED BY TWO
16 AUTHORIZED ELECTION WORKERS WHO MUST EACH BE A MEMBER OF A DIFFERENT ONE
17 OF THE TWO LARGEST POLITICAL PARTIES, WHO HAVE COMPLETED A CHAIN OF
18 CUSTODY LOG MAINTAINED AT THE VOTING LOCATION OR DESIGNATED BALLOT
19 RECEPTACLE THAT INCLUDES THE TOTAL COUNT OF THE EARLY BALLOTS BEING
20 TRANSPORTED AND WHO DELIVER THE BALLOTS TO A DESIGNATED RECEIVING SITE
21 THAT IS AN OFFICIAL ELECTIONS FACILITY AND NOT A THIRD-PARTY VENDOR. THE
22 CHAIN OF CUSTODY LOG FOR EARLY BALLOTS RETURNED AT VOTING LOCATIONS AND
23 DESIGNATED BALLOT RECEPTACLES SHALL BE AVAILABLE FOR INSPECTION BY THE
24 PUBLIC, THE POLITICAL PARTIES, THE COMMITTEES REPRESENTING ANY BALLOT
25 MEASURES ON THE BALLOT AND THE CANDIDATES ON THE BALLOT WITHIN FORTY-EIGHT
26 HOURS AFTER ELECTION DAY.

27 Sec. 14. Section 16-1017, Arizona Revised Statutes, is amended to
28 read:

29 16-1017. Unlawful acts by voters with respect to voting:
30 classification

31 A voter who knowingly commits any of the following acts is guilty of
32 a class 2 misdemeanor:

33 1. Makes a false statement as to the voter's inability to mark a
34 ballot.

35 2. Interferes with a voter within the seventy-five foot limit of
36 ~~the polling place~~ A VOTING CENTER as posted by the election marshal,
37 WITHIN THE SEVENTY-FIVE FOOT LIMIT OF A DESIGNATED BALLOT RECEPTACLE or
38 within seventy-five feet of the main outside entrance to an on-site early
39 voting location established by a county recorder pursuant to section
40 16-542, subsection A.

41 3. Endeavors while within the seventy-five foot limit for a ~~polling~~
42 ~~place~~ VOTING CENTER, DESIGNATED BALLOT RECEPTACLE or on-site early voting
43 location to induce a voter to vote for or against a particular candidate
44 or issue.

45 4. ~~Prior to~~ BEFORE the close of an election defaces or destroys a
46 sample ballot posted by election officers, or defaces, tears down,
47 removes or destroys a card of instructions posted for the instruction of
48 voters.

1 5. Removes or destroys supplies or conveniences furnished to enable
2 a voter to prepare the voter's ballot.

3 6. Hinders the voting of others.

4 7. Votes in a county in which the voter no longer resides, except
5 as provided in section 16-125.

6 Sec. 15. Section 16-1018, Arizona Revised Statutes, is amended to
7 read:

8 16-1018. Additional unlawful acts by persons with respect to
9 voting; classification

10 A person who commits any of the following acts is guilty of a class
11 2 misdemeanor:

12 1. Knowingly electioneers on election day within a ~~polling place~~
13 VOTING LOCATION OR WITHIN THE SEVENTY-FIVE FOOT LIMIT FOR A DESIGNATED
14 BALLOT RECEPTACLE or in a public manner within seventy-five feet of the
15 main outside entrance of a ~~polling place~~ VOTING CENTER or on-site early
16 voting location established by a county recorder pursuant to section
17 16-542, subsection A.

18 2. Intentionally disables or removes from the ~~polling place~~ VOTING
19 CENTER, on-site early voting location or custody of an election official a
20 voting machine or a voting record.

21 3. Knowingly removes an official ballot from a ~~polling place~~ VOTING
22 LOCATION, ON-SITE EARLY VOTING LOCATION OR DESIGNATED BALLOT RECEPTACLE
23 before closing the polls.

24 4. Shows another voter's ballot to any person after it is prepared
25 for voting in such a manner as to reveal the contents, except to an
26 authorized person lawfully assisting the voter. A voter who makes
27 available an image of the voter's own ballot by posting on the internet or
28 in some other electronic medium is deemed to have consented to
29 retransmittal of that image and that retransmittal does not constitute a
30 violation of this section.

31 5. Knowingly solicits a voter to show the voter's ballot, or
32 receives from a voter a ballot prepared for voting, unless the person is
33 an election official or unless otherwise authorized by law.

34 6. Knowingly receives an official ballot from a person other than
35 an election official having charge of the ballots.

36 7. Knowingly delivers an official ballot to a voter, unless the
37 voter is an election official.

38 8. Except for a completed ballot transmitted by an elector by fax
39 or other electronic format pursuant to section 16-543, knowingly places a
40 mark on the voter's ballot by which it can be identified as the one voted
41 by the voter.

42 9. After having received a ballot as a voter, knowingly fails to
43 return the ballot to the election official before leaving the ~~polling~~
44 ~~place~~ VOTING LOCATION or on-site early voting location.

45 10. KNOWINGLY INTERFERES WITH A VOTER OR KNOWINGLY ENGAGES IN
46 CONDUCT THAT IS DIRECTED AT ONE OR MORE PERSONS WHO ARE DELIVERING OR
47 ATTEMPTING TO DELIVER A VOTED BALLOT TO A LAWFUL RECIPIENT, A VOTING
48 LOCATION OR A DESIGNATED BALLOT RECEPTACLE AND THAT CONSTITUTES HARASSMENT
49 AS PRESCRIBED IN SECTION 13-2921.

1 Sec. 16. Appropriations; secretary of state; elections;
2 exemption
3 A. The sum of \$1,000,000 is appropriated from the state general
4 fund in fiscal year 2026-2027 to the secretary of state for:
5 1. Grants to assist counties to purchase equipment needed to
6 convert to the use of voting centers. At least \$500,000 shall be used for
7 this purpose.
8 2. Participation in a MULTISTATE ELECTRONIC VOTER REGISTRATION
9 INFORMATION CENTER.
10 3. Assistance for counties in establishing text-based early voting
11 tracking systems and a text-based notice to cure system.
12 B. The sum of \$1,000,000 is appropriated from the state general
13 fund in fiscal year 2026-2027 to the secretary of state for information
14 technology and cybersecurity programs that support state and county
15 elections.
16 C. The appropriations made in subsections A and B of this section
17 are exempt from the provisions of section 35-190, Arizona Revised
18 Statutes, relating to lapsing of appropriations.
19 Sec. 17. Short title
20 This act may be cited as the "Voters First Act".
21 Amend title to conform

AARON MÁRQUEZ

1037MÁRQUEZ SE.docx
03/09/2026
09:05 AM
H: RB/ra
130ALOVLK